

7 Exports by Air

7.1 General

Aircraft on a flight to a destination outside the EU must depart from a customs airport and declare outwards.

7.1.1 Law

From a Revenue perspective, aircraft departing from the State are governed by the provisions of Sections 10 and 11 of the Customs Act, 2015 and the Customs (Reports Inwards and Outwards by Aircraft) Regulations 2016 ([S.I. No. 613 of 2016](#))

7.1.2 Approvals

All airports, licensed aerodromes, aerodromes, and airstrips must be approved for the arrival and/or departure of flights (regardless of whether the flights are of an intra-Union or third country in nature).

(Sections 6 and 7 of the Customs Act, 2015 refer).

7.1.3 Foreign military aircraft

Foreign military aircraft are not to be regarded as coming within the provisions of these Regulations and their operations are not to be interfered with by officers. However, any suspicion of illicit traffic by such aircraft is to be brought to the notice of the relevant Assistant Principal.

7.1.4 Third country traffic

Aircraft departing on a flight to a destination outside the customs territory and / or the fiscal territory of the EU, must not, unless permitted by Revenue, depart from any place other than a customs airport.

(Section 10 of the Customs Act 2015 refers).